USER AGREEMENT TERMS AND CONDITIONS

Mac Discount, LLC

d.b.a. MAC.BID

d.b.a. M@C Discount

(Updated 3/12/2026)

1. Introduction

Welcome to the MAC.BID Auction Site (MAC.BID) and the MAC.BID Mobile App (collectively, "Site").

The following Terms and Conditions are applicable to all transactions and dealings with Mac Discount, LLC d.b.a. M@C Discount, d.b.a. MAC.BID, MAC.BID Auction Website and MAC.BID Mobile App, collectively "MAC".

By accessing the Site, utilizing the services of MAC as a user, or by registering as a user regardless of your physical location, you agree that: (1) you have read these Terms and Conditions; (2) you understand these Terms and Conditions; and (3) you are bound by these Terms and Conditions in your use of the services and the Site. The services provided on the Site enable Users, among other things, to:

- place bids on items in auctions;
- join the Standard Buyers Club or Premium Buyers Club;
- purchase Buyers Assurance product.

We refer to any person who (i) accesses the Site or (ii) registers to use the services as a "User" regardless of whether the person purchases items in an auction. Also, the term "you" and "your" refers to both an individual user and the business if registered by an authorized individual.

These Terms and Conditions, together with (i) any additional terms and conditions specific to a particular auction, or (ii) terms and conditions anywhere else on the Site constitute the entire agreement between MAC and you related to your access and use of the Site and the services,

including, but not limited to, the bidding and purchase of items in an auction. These Terms and Conditions supersede and replace any and all prior or contemporaneous written or oral agreements between the parties regarding such subject matter. These Terms and Conditions can only be changed or waived by an authorized representative of Mac Discount, LLC.

2. Use of the Site

- **2.1. Registration**
  You must register and agree to these Terms and Conditions as a prerequisite to submit bids for items in an auction. To register as a User on the Site you must provide, among other things, your name, the name of the business you are authorized to act for and your title (as applicable), phone number, e-mail address and a valid credit card. Upon your completion of a registration application and acceptance of these Terms and Conditions, your registration application will be reviewed by MAC and will be accepted or rejected in MAC's sole discretion.

  You warrant that all registration information provided to MAC is true, accurate and complete and, if registering for a business, that you are authorized to act on behalf of and bind the business. You will immediately inform MAC of any change in your registration information.

  In registering or in any other communication with MAC you may not impersonate or misrepresent an affiliation with any other person or entity.

  The Site is intended for users 18 and older. By accessing the Site or using the Services, Users represent and warrant that you are at least eighteen (18) years old, or any higher minimum age in the jurisdiction where you reside. Parents or guardians are responsible for all activity of minors on the Sites, including but not limited to, the submission of a bid, purchasing Buyers Assurance and joining the paid membership program.

  When you register for auctions, you will be required to confirm (i) your initial registration, and (ii) that you and your company, as applicable, agree to these Terms and Conditions (as then in effect) and to all other terms and conditions set forth anywhere on the Site or related to the auction.

Our Privacy Policy (Privacy Policy) details how we handle the information you provide to us whether as part of your registration or in the use of the Site or services.

- **2.2. User Accounts** - Users are assigned an account name and password on registration. Users are responsible for all actions taken under their account name and password and shall only use the Site using their own account name and password. Users must keep their password safe and shall not disclose it to any other person and shall not permit any other person to utilize their account details. Users are required to complete those transactions that occur using their account name and password, whether such transactions are authorized or not.
- **2.3. Exclusion of Users & Rejection or Amendment of Bids** - Without limitation to any other remedies, MAC.BID may exclude any User from any Auction and block any registration if the User has breached or threatens to breach these Terms and Conditions or engages in any behavior which MAC.BID in its sole discretion regards as likely to have an adverse effect on the conduct of the Auction or the reputation of MAC.BID. Furthermore, MAC.BID reserves the right, in its sole discretion, to exclude products from offers and refuse acceptances, bids or offers, as well as to discontinue Auctions or its Services altogether at any time or for any reason.
- **2.4. Bidding** - By placing a bid in an auction, you are extending an irrevocable offer to purchase the items at the price set forth in the bid. **Once entered, a bid may not be retracted.**
- **2.5. Item Inspection** - All items will be available for inspection prior to the auction. All Users should inspect items prior to bidding. Failure to inspect an item is not the fault of MAC and will not be deemed reason for issuing a refund (see Section 2.10).
- **2.6. Winning Bid** - The User that entered the Winning Bid will consummate the purchase of the item within the time specified in the Terms and Conditions for the auction. Unless stated in the specific terms and conditions for an auction, all items will be charged to the User's default credit card on file following sale. In most cases this will be the following morning. This amount will include the Winning Bid, all buyers' premiums, lot fees, Buyers Assurance Fee and sales tax, if applicable. Upon receipt of payment, all risk of loss shall pass to User. Winning Bids may not be cancelled at any point following the close of an auction.
- **2.7. Lot Closing Time** - Specific lot closing times are published on the Site. MAC shall not be responsible for notifying any User of a change in any closing date or time. MAC will not accept a bid that is received after the closing date and time for the auction and all dynamic close time extensions. In the event that a higher bid is

entered within a designated time period, chosen by MAC, of the scheduled lot closing time, the closing time will automatically be extended, in increments specified by MAC, until no bids have been entered in the pre- stated increment prior to the closing time for the auction. Each User is solely responsible for taking such actions as are appropriate to learn of changes to a closing date or time. The User bears the sole risk of transmitting bids so that such bids are received on the site prior to close of the auction lot.

- **2.8. Item Removal** - The User is required to pick-up all items purchased by the removal time set forth in the specific auction. All removal shall be at the expense, liability and risk of the User. We will hold your item for the time set forth in the specific auction, items not picked up by the removal Deadline are subject to cancellation. When an item is sold and not picked up before the Removal Deadline, MAC may cancel the sale and apply the following policy:
    - The Buyer's Premium and Lot fees will be retained as payment for the auction services.
    - A Restocking Fee will be charged to the winning bidder, as follows:
        - For single item purchases the Restocking Fee is greater of (i) 25% of the purchase price as a bid, or (ii) $25.00;
        - For Pallet purchases the Restocking Fee is the greater of (i) 25% of the purchase price as a bid, or (ii) $50.00;
        - In no case shall the restocking Fee exceed the purchase price as bid for cancelled purchases;
        - The difference between the purchase price as bid and the restocking Fee will be refunded to the winning bidder's method of payment.
    - There shall be no Restocking Fees when an item is not picked up due to an error by MAC.BID.
    - Partially Removed Pallets – If a Member only partially removes items from the Pallet and leaves the Pallet and remaining items behind anywhere on MAC property (including the parking lot area), In addition to retaining the purchase price, Buyers Premium and Lot Fee, MAC will charge a $50.00 Restocking Fee to Member to compensate for the handling of the abandoned remaining items.
- **2.9. Shortage or Damage Claims** - No shortage or damage claims will be allowed after the items have been removed from the premises (see Section 2.10). MAC shall not be liable for non-delivery to any User of all or any portion of a lot/item, other than for the return to the User of the corresponding portion of the sum paid on said lot/item. All of the limitations contained in Section 9 and 10 below shall apply.

    - **2.9.1 Inventory List for Pallet Items** - The inventory list provided for the contents of a Pallet Item are provided for representative purposes. All Bidders must inspect pallets thoroughly to have a complete list of the contents of the pallet. Refunds will not be given for missing items from a pallet sale.
- **2.10. Refunds** - All items will be listed for sale with a "Condition Code". This Condition Code will dictate the type of refund, if any, that will be considered. The Condition Codes are "Like New," "Open Box," "Damaged," "Partial," and "Last Chance Deals." Open Box, Damaged, and Last Chance Deals are sold AS/IS, which means the User is agreeing to purchase the item without any representations, warranties or guaranties of any kind by MAC. Except for factory sealed Like New items, MAC makes all items available for inspection prior to bidding. It is the responsibility of the User to inspect items before placing a bid on the site. Below are the descriptions of each Condition Code:
    - **2.10.1 Like New** - These are items that appear to be in a new condition or have never been used previously. These items are not tested for full functionality or completeness, and the original factory sealed box or wrapping may be missing. For certain items, MAC may indicate whether the item powers on without fully resting the item's functionality. For items that are marked Like New a User must examine the item thoroughly when claiming (picking-up) the item. If the item does not appear new or unused, or if there is any other issue, the User MUST report this to MAC prior to leaving the premises to receive a refund to the original form of payment. Once the User has left the premises with the item, MAC may decline to issue a refund for issues arising with the item. Depending on the circumstances, and in its sole discretion, MAC may offer a refund or credit for Like New items with defects discovered after leaving the premises, not including buyer remorse.
    - **2.10.2 Open Box** - Open Box items were sold by a retailer, and potentially used before being returned by the customer. Open Box items may be damaged or have missing pieces, so the User should not make any assumptions regarding the condition of the item. Open Box items have not been tested for full functionality. For certain items, MAC may indicate whether the item powers on without fully testing the item's functionality. All Open Box items are sold AS/IS. Depending on the circumstances, and in its sole discretion, MAC may offer a refund or credit for Open Box items that were inaccurately described.

    - **2.10.3 Damaged** - Items marked "Damaged" indicate that MAC believes the item may be incomplete or not function for its intended purpose. Damaged items have not been tested for functionality. All Damaged items are sold AS/IS. MAC does not issue refunds on these items.
    - **2.10.4 Partial** - Items marked "Partial" indicate that MAC believes the item may be incomplete or missing components. Partial items have not been tested for functionality. All Partial items are sold AS/IS. MAC does not issue refunds on these items.
    - **2.10.5 Last Chance Deals** - Items sold as Last Chance Deals are closeout sales offered at a deeply discounted price to clear out inventory. All Last Chance Deals are sold AS/IS. MAC does not issue refunds on these items.
- **2.11. Buyer's Premium** - MAC may, in its discretion, charge a buyer's premium, lot fee or other service charge on items sold (including any applicable sales or value added tax or similar taxes in the relevant jurisdiction at the current rate). All such charges will be indicated on the specific auction terms and conditions. If charged, the buyer's premium shall be collected directly from each successful User, in addition to the lot fees, sales tax and purchase price as bid.
- **2.12. Late Payment** - User acknowledges that time is of the essence with respect to their timely payment of all funds required under Section 2.6 and 2.11 of this Agreement. In the event that any such payments are not fully made prior to 10:00 am the day following the auction closing date, the User shall be required to pay MAC a late payment penalty of up to one hundred ($100.00) dollars.
- **2.13. Reinstatement Fee** - If a User account is suspended for any reason, the User may be assessed an additional Reinstatement Fee up to one hundred ($100.00) dollars. At MAC's sole discretion a User account may be permanently suspended for repeat violations of the Terms and Conditions.
- **2.14. Transfers and Holds** - A User may elect to have an eligible item transferred to a MAC physical location other than the original location or placed on "Hold" in the original location. If an item is eligible for a transfer, the User is required to pay a fee (as stated on MAC) for the item to be transferred. Each item can be transferred within a specific District but may not be transferred to auction facilities in other Districts. Hold fees will vary depending upon the size and type of auction. Items that are listed as "non-Transferrable" will have a Hold fee as described on MAC. Items that are eligible for Transfer will have a Hold fee as described on MAC. This fee will be disclosed on the Site, may be changed at the sole discretion of MAC and must be paid prior to the Transfer or Hold. The Removal Deadline

will be adjusted for all items that have been Transferred or placed on Hold as follows:

- **2.14.1 Transfers** - Once the Transferred Item arrives at the final destination an email will be sent to the User announcing the item is available for pick-up. Additionally the status will change on the item on the Site to "Awaiting Pickup". From this time the User will have 7 days to remove the item. If the item is not removed within 7 days, the item sale may be cancelled as provided under Section 2.8.
- **2.14.2 Holds** - Once the Hold fee has been paid, the User will have 7 days beyond the original removal deadline to remove the item. If the item is not removed within 7 days, the item sale may be cancelled as provided under Section 2.8. NOTE - Transferred items cannot be held beyond the 7 days afforded for Transfers, even if you are a member of the Buyers Club.

- **2.15. Buyers Club** - A User may elect to become a member of the Buyers Club by agreeing to pay a subscription fee. The membership will renew automatically until cancelled by the User. The User can manage the membership settings through the User's profile on the Site or by contacting MAC.BID at help@mac.bid . By maintaining membership, the User will be entitled to the additional benefits below:
  - **2.15.1 VIP Buyers Club Membership** – VIP Buyers Club membership is by invitation only. By paying the monthly membership fees as described by MAC, Users are entitled to the following benefits:
    - Extended Removal Hours - VIP Members may claim items during special members only removal hours. These hours are between 10:00 am - 12:00pm Monday through Sunday (two hours before MAC is open to the general public). Not all locations are open on Saturday and Sunday. Each location's hours of operation can be found at www.MAC.BID.
    - Two Returned Items per 30-day period - A User must be a VIP Member when the auction closed and when the return is presented to MAC for the Item to be returned. If the conditions are met, no reason is required for the return to be valid. NOTE - This benefit does not apply to Damaged, Pallet, Partial or Last Chance Deal items.
    - Rollover Returns - If a VIP Member does not use a return in the 30-day period, it may be "rolled over" to the next 30-day period. The maximum number of returns that can be rolled over is ten (10).

- Return Period - All items must be returned within 30-days after the close of the auction. After this Return Period has expired, no returns will be accepted.
- Free Transfers for Eligible Transferrable items per month - VIP Members may elect to have all eligible items sent to another MAC location, within the District where the item was sold, for pickup. NOTE - This benefit does not apply to Last Chance Deals items.
- Automatic Transfers for Eligible Transferrable items – VIP Members may elect to have all eligible transferrable items automatically transferred to a specific location.
- Free Holds for Eligible Transferrable items - All eligible transferrable items will be automatically placed on Hold for an additional 7 days beyond the original removal deadline if designated by the VIP Member in their account. If the item is not removed within 7 days, the item sale may be cancelled as provided under Section 2.8. NOTE - Transferred items cannot be held beyond the 7 days afforded and does not apply to Last Chance Deal items.
- Use of Fast Pass Checkout Line – Benefit allows a VIP Member to use of the "Fast Pass" lane for priority checkout.
- Expedited Removal – Benefit allows a VIP Member to schedule curated removal with the assistance of MAC removal personnel.
- NOTE – If at any time a VIP Member terminates their annual membership that qualified them for VIP or does not maintain their VIP membership uninterrupted, the Member will be moved to a lower level of membership commensurate to their new payment plan, if any. If a Member wishes to receive the VIP membership benefit after this occurs, they must re-qualify as per the requirements of the VIP membership platform. No credit will be given for past membership tenure when making this determination.

- **2.15.2 Premium Plus Buyers Club Membership** - By paying the annual Premium Plus membership fee or having an active Premium Membership for a rolling 12 consecutive months as described on MAC, Users are entitled to the following benefits:
  - Extended Removal Hours - Premium Plus Members may claim items during special members only removal hours. These hours are between 10:00 am - 12:00pm Monday through Sunday (two hours before MAC is open to the general public). Not all locations are open on Saturday and

Sunday. Each location's hours of operation can be found at www.MAC.BID.

- One Returned Item per 30-day period - A User must be a Premium Plus Member when the auction closed and when the return is presented to MAC for the Item to be returned. If the conditions are met, no reason is required for the return to be valid. NOTE - This benefit does not apply to Damaged, Pallet, Partial or Last Chance Deal items.
- Rollover Returns - If a Premium Plus Member does not use a return in the 30-day period, it may be "rolled over" to the next 30-day period. The maximum number of returns that can be rolled over is Five (5).
- Return Period - All items must be returned within 30-days after the close of the auction. After this Return Period has expired, no returns will be accepted.
- Up to 20 Free Transfers for Eligible Transferrable items per month - Premium Plus Members may elect to have all eligible items sent to another MAC location, within the District where the item was sold, for pickup. A transfer fee will be applied for all Premium Plus Member transfers of eligible transferrable items over 20 per month of $1.99 per item. NOTE - This benefit does not apply to Last Chance Deals items.
- Automatic Transfers for Eligible Transferrable items – Premium Plus Members may elect to have all eligible transferrable items automatically transferred to a specific location.
- Free Holds for Eligible Transferrable items - All eligible transferrable items will be automatically placed on Hold for an additional 7 days beyond the original removal deadline if designated by the Premium Plus Member in their account. If the item is not removed within 7 days, the item sale may be cancelled as provided under Section 2.8. NOTE - Transferred items cannot be held beyond the 7 days afforded and does not apply to Last Chance Deal items.
- Use of Fast Pass Checkout Line – Benefit allows a Premium Plus Member to use of the "Fast Pass" lane for priority checkout.
- NOTE – If at any time a Premium Plus Member terminates their annual membership that qualified them for Premium Plus or does not maintain a rolling twelve-month consecutive Premium Membership to maintain their

Premium Plus membership, the Member will be moved to a lower level of membership commensurate to their new payment plan, if any. If a non-Premium Plus Member wishes to receive the Premium Plus membership benefit after this occurs, they must re-qualify as per the requirements of the membership platform. No credit will be given for past membership tenure when making this determination.

- **2.15.3 Premium Buyers Club Membership** - By paying the monthly membership fees as described on MAC, Users are entitled to the following benefits:
  - Extended Removal Hours - Premium Members may claim items during special members only removal hours. These hours are between 10:00 am - 12:00pm Monday through Sunday (two hours before MAC is open to the general public). Not all locations are open on Saturday and Sunday. Each location's hours of operation can be found at www.MAC.BID.
  - One Returned Item per 30-day period - A User must be a Premium Member when the auction closed and when the return is presented to MAC for the Item to be returned. If the conditions are met, no reason is required for the return to be valid. NOTE - This benefit does not apply to Damaged, Pallet, Partial or Last Chance Deal items.
  - Rollover Returns - If a Premium Member does not use a return in the 30-day period, it may be "rolled over" to the next 30-day period. The maximum number of returns that can be rolled over is three (3).
  - Return Period - All items must be returned within 30-days after the close of the auction. After this Return Period has expired, no returns will be accepted.
  - Up to 20 Free Transfers for Eligible Transferrable items per month - Premium Plus Members may elect to have all eligible items sent to another MAC location, within the District where the item was sold, for pickup. A transfer fee will be applied for all Premium Member transfers of eligible transferrable items over 20 per month of $4.99 per item. NOTE - This benefit does not apply to Last Chance Deals items.
  - Automatic Transfers for Eligible Transferrable items – Premium Members may elect to have all eligible transferrable items automatically transferred to a specific location.

        - Free Holds for Eligible Transferrable items - All eligible transferrable items will be automatically placed on Hold for an additional 7 days beyond the original removal deadline if designated by the Premium Member in their account. If the item is not removed within 7 days, the item sale may be cancelled as provided under Section 2.8. NOTE - Transferred items cannot be held beyond the 7 days afforded and does not apply to Last Chance Deal items.
    - **2.15.4 Standard Buyers Club Membership** - By paying the monthly membership fees as described on MAC, Users are entitled to the following standard benefits:
        - Extended Removal Hours - Standard Members may claim items during special members only removal hours. These hours are between 10:00 am - 12:00pm Monday through Sunday (two hours before MAC is open to the general public). Not all locations are open on Saturday and Sunday. Each location's hours of operation can be found at www.MAC.BID.
        - Standard members are entitled to five (5) free Holds or Transfers each month.
            - Transfers - Standard Members may elect to have all eligible transferrable items sent to any MAC location, within the District where the item was sold, for pickup. If the Standard member exceeds the threshold for free transfers, the Standard Member will be charged the same transfer fees as non-members.
            - Holds - A Standard Member may elect to place any item on Hold for an additional 7 days beyond the original removal deadline. If the item is not removed within 7 days, the item sale may be cancelled as provided under Section 2.8.
- **2.16. Mac Bucks** – MAC provides "Mac Bucks" as rewards for using the Site and services ("Reward Mac Bucks"). MAC also allows users to purchase Mac Bucks ("Purchased Mac Bucks"). Both Reward Mac Bucks and Purchased Mac Bucks can be used to pay for certain products and services offered by MAC. Reward Mac Bucks expire 180 days after they are earned. Purchased Mac Bucks do not expire as long as the User's account remains open. If a User's account containing Reward Mac Bucks or Purchased Mac Bucks is permanently closed, the Mac Bucks associated with the account will be lost. Unless required by law, Mac Bucks are not a User's property. Mac Bucks have no value until redeemed. A User cannot transfer or

move Mac Bucks unless expressly allowed by MAC. Additionally, Mac Bucks cannot be transferred by operation of law, such as by inheritance, in bankruptcy or in connection with a divorce. MAC is not responsible for any disputes a User may have regarding the use of or alleged misuse of Mac Bucks by a third-party. Users agree to indemnify and hold MAC and all of their respective affiliates, directors, officers, employees, agents and contractors harmless from and against any loss, damage, liability, cost, or expense of any kind (including attorney's fees) arising from a User's use of Mac Bucks or any fraud or misuse of Mac Bucks.

    - **2.16.1 Referral Program** – MAC offers a referral program through which registered Users may invite others to join MAC.BID. When a new user signs up using a valid referral code or link, the referred user will receive $5 in Reward Mac Bucks credited to their account upon registration. The referring User will receive $10 in Reward Mac Bucks credited to their account when the referred user wins an auction lot and picks up the item at a MAC facility. The referring User's reward is contingent on the referred user completing a qualifying pickup. MAC reserves the right to modify, suspend, or discontinue the referral program at any time and to disqualify referrals that MAC determines, in its sole discretion, are fraudulent, duplicated, or otherwise ineligible. Reward Mac Bucks earned through the referral program are subject to the general Mac Bucks terms above, including the 90-day inactivity expiration policy disclosed in the MAC mobile app and on the Site.

- **2.17. Buyers Assurance** - A User may elect to purchase "Buyers Assurance" for any individual item in the auction. This purchase is elected at the time the bid is placed in the auction. The cost for this product is specified at the time a bid is placed. The price will not change as the bid increases. The Buyers Assurance product allows the User to return the Item, for which the product was purchased, within 7 Days following the pickup of the item. This return is treated as a Preferred Buyers Club return, and a reason is not required to process the refund. If an item is transferred from another location, the User is allowed to return the item within 7 Days following the pickup of item from the new pick-up location. Buyers Assurance is not available on all items.
- **2.18. Time Zones** - MAC.BID Site and all communication from MAC.BID (push notification, email, and/or text message) shows business hours, auction closing time and payment processing time is based off the local time zone of the business location, regardless of location or client device time zone.

3. Data Protection & Corporate Information

MAC may transmit all information in connection with the registration, the posting of an offer/bid/acceptance and offers/listings of products to the other Users in any part of the world in the form and to the extent suitable for the execution of an auction. All data produced or transmitted in connection with the execution of an auction at or to MAC may be stored, used and transmitted as described in the MAC Privacy Policy. Users undertake that information concerning other Users and their employees, contractors or agents obtained through the Site shall not be used for sending unsolicited commercial messages or for any purpose other than participation in auctions or use of the Site. Users also agree that they will only use such information in accordance with applicable laws and regulations, including, without limitation, data protection and privacy laws.

4. Use of User Information on the Site

To enable the Site to use information provided by all Users, the Users grant MAC on registration a non-exclusive, world-wide, perpetual, irrevocable, royalty-free, sub-licensable (through multiple tiers) license to exercise all rights the User has (including copyright and trademark) in any information provided and to do so in any media form whether now known or not currently known, in order to provide the services.

5. Advertising & Affiliates

- **5.1. Affiliate Program Participation**
  MAC reserves the right to participate in Retailer Associates Programs. When you click a link to a retailer site from our website, the retailer may place cookies or use similar technologies (such as pixel tags and device identifiers) to recognize that you arrived via our site and to attribute qualifying purchases. As a Retailer's Associate, we may earn from qualifying purchases.

- **5.2. What is collected and by whom**
  Technical identifiers (e.g., cookie IDs), device and browser information (IP address, user-agent), referrer URL, pages or products viewed on a retailer's site, and purchase events necessary for commission attribution. By us: we do not receive your full order contents, payment information, or your personal information from

the retailer. We may, however, receive aggregated reports (e.g., number of clicks, items ordered, and commissions earned).

- **5.3. Legal basis (where applicable)**
  US (including CA/VA/CO/CT/UT): We may use affiliate tracking for "advertising/marketing" purposes. Depending on your state, this may be considered "targeted advertising" or "sharing" of data for cross-context behavioral advertising. We honor applicable opt-out rights as described below.

- **5.4. Your choices & opt-outs**
  - **5.4.1. Cookie controls:** Use our cookie banner/consent manager (where available) or your browser settings to block or delete cookies.
  - **5.4.2. Retailer preferences:** You can manage certain Retailer advertising/interest-based settings within your Retailer account and device settings.
  - **5.4.3. US state privacy rights:** Residents of certain states may have rights to opt out of "sale"/"sharing" or targeted advertising. See the Your Privacy Rights section for how to submit requests or use our site's "Do Not Sell or Share" link (if applicable).
  - **5.4.4. Do Not Track:** Because there is no common industry standard, our site does not respond to browser "Do Not Track" signals. We honor legally required opt-out mechanisms instead.
- **5.5. Retention**
  Affiliate cookies and identifiers set by the Retailer persist for a limited attribution window determined by the Retailer. We retain only aggregated referral reports for as long as necessary for accounting, tax, and fraud-prevention purposes.

- **5.6. Third-party responsibility**
  Links to any Retailer are operated by that Retailer. Your interactions on the Retailers site are governed by the Retailer's terms and privacy notice. We do not control, and are not responsible for, the Retailer's data practices.

6. Sales Taxes

Any price indicated on the Site or agreed to in an auction is stated exclusive of any value added, sales, or use tax. Such taxes will be added to the sale price and paid by User to MAC. If User is eligible for a tax exemption, User must provide proper documentation to MAC. Until such

documentation is provided, applicable taxes will be charged and payable by User.

7. Use of the Site & Services

MAC grants a limited, non-transferable, revocable right to each User to access and make use of the Site for the purposes of the User using the Site and the services in accordance with these Terms and Conditions. Users are responsible for procuring and maintaining their network connections and telecommunication links from their systems to use the Site.

Users shall not use the Site for fraudulent purposes or in connection with any unlawful activity.

Users are expressly forbidden from any form of bid manipulation, including collusion or bidding on lots that they themselves or a party affiliated with them are selling in an auction. Users may not bid under a false name or as agent for a person or entity which would itself be prohibited by these Terms and Conditions or by the terms and conditions governing the specific auction in question from placing a bid on a particular lot.

MAC may, in its sole discretion, terminate a User's right to access and use the Site at any time for any reason. Reasons for termination include, but are not limited to User fraud, User chargebacks, and inappropriate User behavior at or near any MAC facility or during communication with a representative of MAC.

MAC shall use commercially reasonable efforts to protect against unauthorized access, but MAC cannot guarantee the security of any information User discloses online and User does so at your own risk. MAC is not responsible for the security of any information transmitted via the Internet or any error or delay in transmitting any information over the Internet, and User assumes sole and complete risk for using this Site. By using this Site and providing this data, User consents to the collection of and use of the data in accordance with this Agreement.

MAC does not guarantee continuous, uninterrupted or secure access to the Site. The Site and services are provided **"AS IS" and "AS AND WHEN AVAILABLE"**.

MAC may change, modify, amend, suspend or discontinue any aspect of the Site or the services at any time without notice and MAC reserves the

right to impose restrictions on certain features of the Site or the services at any time without notice.

If a technology malfunction materially affects the outcome of an auction, MAC reserves the right to withdraw the auction within 72 hours following the original auction close time.

Users' access to the Site may be occasionally suspended or restricted to allow for repairs, maintenance, or the introduction of new facilities or services. MAC will use reasonable endeavors to limit the frequency and duration of any such suspension or restriction.

8. Proprietary Rights

Users acknowledge and agree that MAC and/or its licensors own all intellectual property rights in the Site and the services. Except as may be expressly stated, Users are not granted any rights to, or in, patents, copyright, database rights, trade secrets, trade names, trademarks (whether registered or unregistered), or any other rights or licenses in respect of the Site or the services.

9. Indemnity and Hold Harmless

As a condition of using the Site and the services, User agrees to indemnify, defend, and hold harmless, MAC, its subsidiaries and affiliates and their respective owners, managers, directors, officers agents, partners and employees, from and against any and all liabilities, losses, demands, claims, damages, costs and expenses (including attorney's fees and expenses) suffered or incurred directly or indirectly arising from or related to (i) your use of the Site in violation of these Terms and Conditions, (ii) your breach of these Terms and Conditions, (iii) any accident, injury or death howsoever arising, sustained by any person or persons who access any MAC premises for the purpose of an auction, inspection, purchase, collection, removal, pick-up or any other related activity, and (iv) any claim related to or arising out of the use of any product sold or purchased, including but not limited to actions or claims for personal injury, death, disability, disfigurement, economic or other loss or damages.

10. Disclaimer of Warranties

MAC MAKES NO REPRESENTATIONS OR WARRANTIES ABOUT THE ITEMS OR THEIR CONDITION, AND EXPRESSLY DISCLAIM ANY AND ALL WARRANTIES OR REPRESENTATIONS, INCLUDING BUT NOT LIMITED TO ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE AND NON-INFRINGEMENT.

USER ACKNOWLEDGES AND AGREES THAT THE ITEMS ARE SOLD "AS IS," WITHOUT WARRANTY OF ANY KIND.

MAC MAKES NO REPRESENTATIONS OR WARRANTIES ABOUT THE SITE, OR THE SUITABILITY, LEGALITY OR ACCURACY OF THE INFORMATION, PRODUCTS AND SERVICES DESCRIBED OR CONTAINED ON THE SITE.

THE SITE AND ALL SUCH INFORMATION, PRODUCTS AND SERVICES ARE PROVIDED "AS IS", WITHOUT WARRANTY OF ANY KIND, INCLUDING BUT NOT LIMITED TO ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE AND NON-INFRINGEMENT.

11. Limitation of Damages and Liability

IN NO EVENT SHALL MAC BE LIABLE FOR ANY INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR IN ANY WAY CONNECTED WITH THE SERVICES, OR THE SITE, OR WITH THE DELAY OR INABILITY TO USE THE SITE, OR ANY INFORMATION, PRODUCTS AND SERVICES AVAILABLE ON OR THROUGH THE SITE, INCLUDING WITHOUT LIMITATION LOSS OF REVENUE OR ANTICIPATED PROFITS OR LOST BUSINESS OR LOST SALES, WHETHER BASED IN CONTRACT, TORT, STRICT LIABILITY OR OTHERWISE, EVEN IF MAC HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH LOSS OR DAMAGES.

The total liability of MAC arising from or related to the purchase of an item in an auction, whether based in contract, tort (including negligence), strict liability, or otherwise, shall not exceed the amount paid to MAC for such item. You acknowledge and agree that the foregoing limitations have been bargained for and represent a reasonable allocation of risk based on the economics of our relationship under these Terms and Conditions. Therefore, the foregoing limitations shall apply notwithstanding any failure of essential purpose of any limited remedy.

12. Notice

Any notice given to MAC under these Terms and Conditions shall be in writing and in English and shall be served by mailing it by overnight

delivery service to MAC at Mac Discount, LLC, 2000 Westinghouse Drive, Suite 101, Cranberry Twp, PA 16066 or to such other address as MAC may specify from time to time. For the avoidance of doubt, notice given by Users to MAC under those Terms and Conditions shall not be validly served if sent by e-mail or US Mail. Notices to Users by MAC may be sent to the e-mail address provided to MAC during the registration process, receipt of which is deemed to have occurred twenty-four (24) hours after an e-mail is sent, or by any other method to any address provided by a User.

13. Choice of Law & Venue

ALL DISPUTES CONCERNING THESE TERMS AND CONDITIONS OR RELATING TO OR ARISING FROM YOUR USE OF THE SITE OR SERVICES SHALL BE EXCLUSIVELY GOVERNED BY AND INTERPRETED IN ACCORDANCE WITH THE LAWS OF THE COMMONWEALTH OF PENNSYLVANIA.

YOU AGREE THAT THE STATE AND FEDERAL COURTS SITTING IN ALLEGHENY COUNTY, PENNSYLVANIA, USA, SHALL HAVE PROPER AND EXCLUSIVE JURISDICTION AND VENUE FOR ANY PROCEEDINGS CONCERNING THESE TERMS AND CONDITIONS OR RELATING TO OR ARISING FROM YOUR USE OF THE SITE OR SERVICES. You consent irrevocably to the jurisdiction over you of the aforementioned Courts in any such action or proceeding and agree that the venue provided above is the most convenient forum for both parties. You also waive any objection to venue or jurisdiction and any objection based on a more convenient forum in any action instituted in connection with the Site or the services.

YOU ACKNOWLEDGE THAT MAC WOULD NOT PERMIT YOU TO REGISTER AS A USER OR PARTICIPATE AS USER IF THE TERMS OF THIS CLAUSE 13 WERE NOT VALID, BINDING AND ENFORCEABLE.

You irrevocably consent to any process in any legal action or proceedings arising out of or in connection with these Terms and Conditions or its enforceability being served in accordance with the provisions of these Terms and Conditions relating to the service of notices. Nothing contained in these Terms and Conditions shall affect the right to serve process in any other manner permitted by the laws of the State or country in which You are located.

14. Waiver of Jury Trial

YOU HEREBY EXPRESSLY WAIVE ANY RIGHT TO TRIAL BY JURY OF ANY CLAIM, DEMAND, ACTION OR CAUSE OF ACTION CONCERNING THESE TERMS AND CONDITIONS OR RELATING TO OR ARISING FROM YOUR USE OF THE SITE OR SERVICES WHETHER SOUNDING IN CONTRACT OR TORT OR OTHERWISE.

YOU HEREBY AGREE AND CONSENT THAT ANY SUCH CLAIM, DEMAND, ACTION OR CAUSE OF ACTION SHALL BE DECIDED BY ANY COURT AT A TRIAL WITHOUT A JURY, AND THAT MAC MAY FILE AN ORIGINAL COUNTERPART OR A COPY OF THIS SECTION WITH ANY COURT AS WRITTEN EVIDENCE OF THE CONSENT OF YOU TO THE WAIVER OF ITS RIGHT TO TRIAL BY JURY.

15. Miscellaneous

These Terms and Conditions may be amended at any time by MAC in its sole discretion. Use of the services and the Site constitutes acceptance of these Terms and Conditions, including any amendments.

Should any single provision of these Terms and Conditions be or become fully or partially invalid, illegal or unenforceable, the remainder of these Terms and Conditions shall continue in full force and effect.

Failure or neglect by MAC to enforce at any time any of the terms hereof will not be construed nor will it be deemed to be a waiver of MAC's rights hereunder nor in any way affect the validity of the term or any part of these Terms and Conditions nor prejudice MAC's rights to take subsequent action.

MAC will not be liable for any delay or failure to comply with its obligations under these Terms and Conditions if such delay or failure results from circumstances beyond its control.